

Lancashire and Cheshire.
 South Yorkshire.
 West Yorkshire.
 Cleveland.
 Derbyshire (exclusive of South Derbyshire).
 South Derbyshire.
 Nottinghamshire.
 Leicestershire.
 Shropshire.
 North Staffordshire.
 South Stafford (exclusive of Cannock Chase) and East
 Worcestershire.
 Cannock Chase.
 Warwickshire.
 Forest of Dean.
 Bristol.
 Somerset.
 North Wales.
 South Wales, including Monmouth.
 The mainland of Scotland.

Where a mine, though situate in one of these districts, has for industrial purposes been customarily dealt with in the same manner as a mine situate in an adjoining district, that mine shall for the purposes of this Act be treated as situate in the latter district, if the joint district boards of the two districts so agree.

CHAPTER 3.

An Act to consolidate the Shops Regulation Acts, 1892
 to 1911. [29th March 1912.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Conditions of Employment.

1.—(1) On at least one week day in each week a shop assistant shall not be employed about the business of a shop after half-past one o'clock in the afternoon :

Hours of
 employment
 and meal
 times.

Provided that this provision shall not apply to the week preceding a bank holiday if the shop assistant is not employed on the bank holiday, and if on one week day in the following week in addition to the bank holiday the employment of the shop assistant ceases not later than half-past one o'clock in the afternoon.

(2) The occupier of a shop shall fix, and shall specify in a notice in the prescribed form, which must be affixed in the shop in such manner and at such time as may be prescribed, the day of the week on which his shop assistants are not employed after half-past one o'clock, and may fix different days for different shop assistants.

(3) Intervals for meals shall be allowed to each shop assistant in accordance with the First Schedule to this Act :

Provided that this provision shall not apply to a shop if the only persons employed as shop assistants are members of the family of the occupier of the shop, maintained by him and dwelling in his house.

(4) In the case of any contravention of, or failure to comply with, the provisions of this section, the occupier of the shop shall be guilty of an offence against this Act, and shall be liable to a fine not exceeding—

- (a) in the case of a first offence, one pound ;
- (b) in the case of a second offence, five pounds ; and
- (c) in the case of a third or subsequent offence, ten pounds—

unless, in the case of a shop assistant employed after half-past one o'clock in contravention of this section, he proves that the shop assistant was employed merely for the purpose of serving a customer whom he was serving at that time, or, where the time of the closing of the shop was also half-past one o'clock, that the shop assistant was employed merely for the purpose of serving customers who were in the shop at that time.

Hours of
employment
of young
persons.

2.—(1) No person under the age of eighteen years (in this Act referred to as a “young person”) shall be employed in or about a shop for a longer period than seventy-four hours, including meal times, in any one week.

(2) No young person shall, to the knowledge of the occupier of the shop, be employed in or about a shop—

- (a) having been previously on the same day employed in any factory or workshop, as defined by the Factory and Workshop Act, 1901, for the number of hours permitted by that Act ; or
- (b) for a longer period than will, together with the time during which he has been previously employed on the same day in a factory or workshop, complete such number of hours as aforesaid.

(3) In every shop in which a young person is employed a notice shall be kept exhibited by the occupier of the shop in a conspicuous place referring to the provisions of this section and stating the number of hours in the week during which a young person may lawfully be employed in or about the shop.

(4) Where a young person is employed in or about a shop contrary to the provisions of this section, the occupier of the shop shall be guilty of an offence against this Act, and liable to a fine not exceeding one pound, or, where more than one young person is so employed, one pound for each young person, and, if the occupier of a shop fails to comply with the provisions of this section with respect to notices, he shall be guilty of an offence against this Act, and liable to a fine not exceeding forty shillings.

(5) This section shall apply to wholesale shops, and to warehouses in which assistants are employed for hire, in like manner as if they were shops within the meaning of this Act, and the provisions of sections thirteen and fourteen of this Act shall, for the purposes of the enforcement of this section, be construed accordingly.

(6) This section shall not apply to any person wholly employed as a domestic servant.

3.—(1) In all rooms of a shop where female shop-assistants are employed in the serving of customers, the occupier of the shop shall provide seats behind the counter, or in such other position as may be suitable for the purpose, and such seats shall be in the proportion of not less than one seat to every three female shop-assistants employed in each room.

Seats for female shop-assistants.

(2) Any person failing to comply with the provisions of this section shall be guilty of an offence against this Act, and liable for a first offence to a fine not exceeding three pounds, and for a second or subsequent offence to a fine not less than one pound and not exceeding five pounds.

Closing of Shops.

4.—(1) Every shop shall, save as otherwise provided by this Act, be closed for the serving of customers not later than one o'clock in the afternoon on one week day in every week.

Closing of shops on weekly half-holiday.

(2) The local authority may, by order, fix the day on which a shop is to be so closed (in this Act referred to as "the weekly half-holiday"), and any such order may either fix the same day for all shops, or may fix—

- (a) different days for different classes of shops ; or
- (b) different days for different parts of the district ; or
- (c) different days for different periods of the year :

Provided that—

- (i) where the day fixed is a day other than Saturday, the order shall provide for enabling Saturday to be substituted for such other day ; and
- (ii) where the day fixed is Saturday, the order shall provide for enabling some other day specified in the order to be substituted for Saturday ;

as respects any shop in which notice to that effect is affixed by the occupier, and that no such order shall be made unless the local authority, after making such inquiry as may be prescribed, are satisfied that the occupiers of a majority of each of the several classes of shops affected by the order approve the order.

(3) Unless and until such an order is made affecting a shop, the weekly half-holiday as respects the shop shall be such day as the occupier may specify in a notice affixed in the shop, but it shall not be lawful for the occupier of the shop to change the day oftener than once in any period of three months.

(4) Where the local authority have reason to believe that a majority of the occupiers of shops of any particular class in any area are in favour of being exempted from the provisions of this section, either wholly or by fixing as the closing hour instead of one o'clock some other hour not later than two o'clock, the local authority, unless they consider that the area in question is unreasonably small, shall take steps to ascertain the wishes of such occupiers, and, if they are satisfied that a majority of the occupiers of such shops are in favour of the exemption, or, in the case of a vote being taken, that at least one half of the votes recorded by the occupiers of shops within the area of the class in question are in favour of the exemption, the local authority shall make an order exempting the shops of that class within the area from the provisions of this section either wholly or to such extent as aforesaid.

(5) Where a shop is closed during the whole day on the occasion of a bank holiday, and that day is not the day fixed for the weekly half-holiday, it shall be lawful for the occupier of the shop to keep the shop open for the serving of customers after the hour at which it is required under this section to be closed either on the half-holiday immediately preceding, or on the half-holiday immediately succeeding, the bank holiday.

(6) This section shall not apply to any shop in which the only trade or business carried on is trade or business of any of the classes mentioned in the Second Schedule to this Act, but the local authority may, by order made and revocable in the manner hereinafter provided with respect to closing orders, extend the provisions of this section to shops of any class exempted under this provision if satisfied that the occupiers of at least two-thirds of the shops of that class approve the order.

(7) In the case of any contravention of or failure to comply with any of the provisions of this section, the occupier of the shop shall be guilty of an offence against this Act, and shall be liable to a fine not exceeding—

- (a) in the case of a first offence, one pound ;
- (b) in the case of a second offence, five pounds ; and
- (c) in the case of a third or subsequent offence, ten pounds :

Provided that the occupier of a shop shall not be guilty of an offence against this Act when a customer is served at any time at which the shop is required to be closed under this section if he proves either that the customer was in the shop before the time when the shop was required to be closed, or that there was reasonable ground for believing that the article supplied to the customer was required in the case of illness.

(8) Nothing in this section shall prevent customers from being served at a time when the shop in which they are sold is required to be closed with victuals, stores, or other necessities for a ship, on her arrival at or immediately before her departure from a port.

5.—(1) An order (in this Act referred to as “a closing order”) made by a local authority, and confirmed by the Secretary of State in manner provided by this Act, may fix the hours on the several days of the week at which, either throughout the area of the local authority or in any specified part thereof, all shops or shops of any specified class are to be closed for serving customers. Closing orders.

(2) The hour fixed by a closing order (in this Act referred to as “the closing hour”) shall not be earlier than seven o'clock in the evening on any day of the week.

(3) The order may—

(a) define the shops and trades to which the order applies ;
and

(b) authorise sales after the closing hour in cases of emergency and in such other circumstances as may be specified or indicated in the order ; and

(c) contain any incidental, supplemental, or consequential provisions which may appear necessary or proper.

(4) Nothing in a closing order shall apply to any shop in which the only trade or business carried on is trade or business of any of the classes mentioned in the Third Schedule to this Act.

(5) If any person contravenes the provisions of a closing order, he shall be guilty of an offence against this Act, and liable to a fine not exceeding—

(a) in the case of a first offence, one pound ;

(b) in the case of a second offence, five pounds ; and

(c) in the case of a third or subsequent offence, twenty pounds :

Provided that nothing in this section or in any closing order shall render a person liable to any penalty for serving after the closing hour any customer who was in the shop before the closing hour.

6.—(1) Whenever a local authority are satisfied that a *prima facie* case is made out for making a closing order, the authority shall give public notice in the prescribed manner and in the prescribed form of their intention to make an order, specifying therein a period (not being less than the prescribed period) within which objections may be made to the making of the proposed order, and, if after taking into consideration any objections they may have received the local authority are satisfied that it is expedient to make the order and that the occupiers of at least two-thirds in number of the shops to be affected by the order approve the order, they may make the order. Procedure for making orders.

(2) Notice of the provisions of the order shall be given, and copies thereof shall be supplied in the prescribed manner, and the order shall be submitted to the Secretary of State, and the Secretary of State shall consider any objections to the order, and may either disallow the order or confirm the order with or without amendment.

(3) As soon as the Secretary of State has confirmed any order, the order shall become final and have the effect of an Act of Parliament :

Provided that every closing order shall be laid before each House of Parliament as soon as may be after it is confirmed, and, if an address is presented to His Majesty by either House within the next subsequent forty days on which that House has sat after any such order is laid before it praying that the order may be cancelled, His Majesty in Council may annul the order, and any order so annulled shall thenceforth become void and of no effect, but without prejudice to any proceedings which may in the meantime have been taken under the order and without prejudice to the power of making any new closing order.

Local inquiries
for the purpose
of promoting
and facilitat-
ing early
closing.

7.—(1) Where it appears to the Secretary of State, on the representation of the local authority or a joint representation from a substantial number of occupiers of shops and shop assistants in the area of the local authority, that it is expedient to ascertain the extent to which there is a demand for early closing in any locality, and to promote and facilitate the making of a closing order therein, the Secretary of State may appoint a competent person to hold a local inquiry.

(2) If, after holding such an inquiry and conferring with the local authority, it appears to the person holding the inquiry that it is expedient that a closing order should be made, he shall prepare a draft order and submit it to the Secretary of State together with his report thereon.

(3) If the Secretary of State, after considering the draft order and report, and any representations which the local authority may have made in respect thereof, is of opinion that it is desirable that a closing order should be made, he may communicate his decision to the local authority, and thereupon there shall be deemed to be a *prima facie* case for making a closing order in accordance with the terms of the draft order, subject to such modifications (if any) as the Secretary of State may think fit.

(4) The person who held the inquiry shall, if so directed by the Secretary of State on the application of the local authority, assist and co-operate with the local authority in taking the steps preliminary to making the order.

• Revocation of
closing orders.

8. The Secretary of State may, at any time on the application of the local authority, revoke a closing order either absolutely or so far as it affects any particular class of shops, and, if at any time it is made to appear to the satisfaction of the local authority that the occupiers of a majority of any class of shops to which a closing order applies are opposed to the continuance of the order, the local authority shall apply to the Secretary of State to revoke the order in so far as it affects that class of shops, but any such revocation shall be without prejudice to the making of any new closing order.

Provisions with respect to Special Classes of Trade or Business.

9. It shall not be lawful in any locality to carry on in any place not being a shop retail trade or business of any class at any time when it would be unlawful in that locality to keep a shop open for the purposes of retail trade or business of that class, and, if any person carries on any trade or business in contravention of this section, this Act shall apply as if he were the occupier of a shop and the shop were being kept open in contravention of this Act :

Provisions as to trading elsewhere than in shops.

Provided that—

- (a) the prohibition imposed by this section shall, as respects any day other than the weekly half-holiday, be subject to such exemptions and conditions (if any) as may be contained in closing orders ; and
- (b) nothing in this section shall be construed as preventing a barber or hairdresser from attending a customer in the customer's residence, or the holding of an auction sale of private effects in a private dwelling-house ; and
- (c) nothing in this section shall apply to the sale of newspapers.

10.—(1) Where several trades or businesses are carried on in the same shop, and any of those trades or businesses is of such a nature that, if it were the only trade or business carried on in the shop, the shop would be exempt from the obligation to be closed on the weekly half-holiday, the exemption shall apply to the shop so far as the carrying on of that trade or business is concerned, subject, however, to such conditions as may be prescribed.

Provisions as respects shops where more than one business is carried on.

(2) Where several trades and businesses are carried on in the same shop and any of those trades or businesses are of such a nature that if they were the only trades or businesses carried on in the shop a closing order would not apply to the shop, the shop may be kept open after the closing hour for the purposes of those trades and businesses alone, but on such terms and under such conditions as may be specified in the order.

(3) Where several trades or businesses are carried on in the same shop, the local authority may require the occupier of the shop to specify which trade or business he considers to be his principal trade or business, and no trade or business other than that so specified shall, for the purpose of determining a majority under this Act, be considered as carried on in the shop unless the occupier of the shop satisfies the local authority that it forms a substantial part of the business carried on in the shop.

11.—(1) In places frequented as holiday resorts during certain seasons of the year the local authority may by order suspend, for such period or periods as may be specified in the order, not exceeding in the aggregate four months in any year, the obligation imposed by this Act to close shops on the weekly half-holiday.

Special provisions as to holiday resorts.

(2) Where the occupier of any shop in any place in which any such order of suspension is in force satisfies the local authority that it is the practice to allow all his shop assistants a holiday on full pay of not less than two weeks in every year, and keeps affixed in his shop a notice to that effect, the requirement that on one day in each week a shop assistant shall not be employed after half-past one o'clock shall not apply to the shop during such period or periods as aforesaid.

Application to
Post Office
business.

12.—(1) Where Post Office business is carried on in any shop in addition to any other business, this Act shall apply to that shop subject to the following modifications :—

(a) If the shop is a telegraph office, the obligation to close on the weekly half-holiday shall not apply to the shop so far as relates to the transaction of Post Office business thereat :

(b) Where the Postmaster-General certifies that the exigencies of the postal service require that Post Office business should be transacted in any such shop at times when under the provisions of this Act relating to the weekly half-holiday the shop would be required to be closed, or under conditions not authorised by section one of this Act, the shop shall, for the purpose of the transaction of Post Office business, be exempted from the provisions of this Act to such extent as the Postmaster-General may certify to be necessary for the purpose :

Provided that in such cases the Postmaster-General shall make the best arrangements that the exigencies of the postal service allow with a view to the conditions of employment of the persons employed being on the whole not less favourable than those secured by this Act :

(c) The provisions contained in any closing order imposing terms or conditions on the keeping open of any such shop after the closing hour for the transaction of Post Office business shall be subject to the approval of the Postmaster-General.

(2) Save as aforesaid, nothing in this Act shall apply to Post Office business, or to any premises in which Post Office business is transacted.

Enforcement of Act.

Powers and
duties of local
authorities.

13.—(1) It shall be the duty of every local authority to enforce within their district the provisions of this Act, and of the orders made thereunder or under any enactment repealed by this Act, and for that purpose to institute and carry on such proceedings in respect of failures to comply with or contraventions of this Act and such orders as aforesaid as may be necessary to secure the observance thereof, and to appoint inspectors ; and an inspector so appointed shall, for the purposes of his powers

and duties, have in relation to shops all the powers conferred in relation to factories and workshops on inspectors by section one hundred and nineteen of the Factory and Workshop Act, ^{1 Edw. 7. c. 22.} 1901, and that section and section one hundred and twenty-one of the same Act shall apply accordingly; and an inspector may, if so authorised by the local authority, institute and carry on any proceedings under this Act on behalf of the authority.

(2) In this Act the expression "local authority" means—

- as respects the city of London, the common council;
- as respects any municipal borough, the council of the borough;
- as respects any urban district with a population according to the returns of the last published census for the time being of twenty thousand or upward, the district council;
- elsewhere, the county council:

Provided that a county council may, with the approval of the Secretary of State, make arrangements with the council of an urban district in the county with a population of less than twenty thousand, or with the council of a rural district, for the exercise by the council of that district as agents for the county council, on such terms and subject to such conditions as may be agreed on, of any powers of the county council under this Act within the district, and the council of the district may, as part of the agreement, undertake to pay the whole or any part of the expenses incurred in connection with the exercise of the powers delegated to them, and the London County Council may, with the like approval, make similar arrangements with the council of any metropolitan borough.

(3) The expenses of a local authority under this Act (including any expenses which a council undertake to pay as aforesaid), shall be defrayed—

- in the case of the common council of the city of London, out of the general rate;
- in the case of the council of a borough, out of the borough fund or borough rate;
- in the case of a district council, as part of the general expenses incurred in the execution of the Public Health Acts;
- in the case of a county council, as expenses for special county purposes;
- in the case of a metropolitan borough council, as part of the expenses of the council.

14.—(1) All offences against this Act shall be prosecuted, and all fines under this Act shall be recovered, in like manner as offences and fines are prosecuted and recovered under the Factory and Workshop Act, 1901, and sections one hundred and forty-three to one hundred and forty-six of that Act, and so much of section one hundred and forty-seven thereof as relates to

Provisions
with respect
to offences.

evidence respecting the age of any person, so far as those provisions are applicable, shall have effect as if re-enacted in this Act and in terms made applicable thereto :

Provided that all fines imposed in any proceedings instituted by or on behalf of a local authority in pursuance of their powers and duties under this Act shall be paid to the local authority and carried to the credit of the fund out of which the expenses incurred by the authority under this Act are defrayed.

(2) Where an offence for which the occupier of a shop is liable under this Act, has, in fact, been committed by some manager, agent, servant, or other person, the manager, agent, servant, or other person shall be liable to the like penalty as if he were the occupier.

(3) Where the occupier of a shop is charged with an offence against this Act, he shall be entitled upon information duly laid by him to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge ; and if, after the commission of the offence has been proved, he proves to the satisfaction of the court that he has used due diligence to enforce the execution of the Act, and that the said other person has committed the offence in question without his knowledge, consent, or connivance, the said other person shall be summarily convicted of such offence, and the occupier shall be exempt from any fine.

General Provisions.

Expenses of
Secretary
of State.

15. Any expenses incurred by the Secretary of State under this Act, including the remuneration of any person holding a local inquiry under section seven of this Act, shall, to such extent as may be sanctioned by the Treasury, be paid out of moneys provided by Parliament.

Local
inquiries.

16. In addition to the local inquiries which the Secretary of State is empowered to hold under section seven of this Act, the Secretary of State may cause a local inquiry to be held for the purposes of any of his powers and duties under this Act, and the costs incurred in relation to any such last-mentioned inquiry, including the salary of any officer engaged in the inquiry, not exceeding three guineas a day, shall be paid by the local authority concerned, and the Secretary of State may certify the amount of the costs incurred. Any sums so certified shall be a debt to the Crown from the local authority.

Regulations.

17. The Secretary of State may make regulations—

- (a) for prescribing anything which under this Act is to be prescribed ; and
- (b) as to the mode of ascertaining the opinion of occupiers of shops ; and
- (c) as to conduct of local inquiries and matters incidental thereto ; and

- (d) as to the procedure for obtaining the revocation of a closing order; and
- (e) generally for carrying into effect the provisions of this Act.

18.—(1) Any order made by a local authority under this Act may be proved by the production of a copy thereof certified to be a true copy by a person purporting to be the clerk of the local authority by whom the order was made. Proof and revocation of orders.

(2) Any order made by a local authority under this Act may, unless some other method of revocation is provided by this Act, be revoked by an order made in the like manner and subject to the like approval, if any, as the original order.

19.—(1) In this Act—

The expression “shop” includes any premises where any retail trade or business is carried on; Interpretation and saving.

The expression “retail trade or business” includes the business of a barber or hairdresser, the sale of refreshments or intoxicating liquors, and retail sales by auction, but does not include the sale of programmes and catalogues and other similar sales at theatres and places of amusement;

The expression “shop assistant” means any person wholly or mainly employed in a shop in connexion with the serving of customers or the receipt of orders or the despatch of goods;

The expression “bank holiday” includes any public holiday or day of public rejoicing or mourning;

The expression “week” means the period between midnight on Saturday night and midnight on the succeeding Saturday night.

(2) Nothing in this Act shall apply to any fair lawfully held or any bazaar or sale of work for charitable or other purposes from which no private profit is derived.

20. This Act shall apply to Scotland, subject to the following modifications:— Application to Scotland.

The Secretary for Scotland shall be substituted for the Secretary of State;

The local authority for the purposes of this Act shall be the county council in a county (exclusive of the police burghs therein) and the town council in a royal, parliamentary, or police burgh; and the expenses of a local authority under this Act shall be defrayed, in the case of a county council, out of the general purposes rate, and, in the case of a town council, out of the burgh general improvement assessment, or any other assessment leviable by the town council in equal proportions on owners and occupiers: Provided that the ratepayers of a police burgh shall not be assessed by the county council for any such expenses:

References to any provisions of the Factory and Workshop Act, 1901, shall be construed as references to those provisions as applied to Scotland by section one hundred and fifty-nine of that Act.

Application to
Ireland.

21. This Act shall apply to Ireland, subject to the following modifications :—

- (1) The Lord Lieutenant shall be substituted for the Secretary of State :
- (2) The expression “ local authority ” means—
 - as respects any municipal borough, the council of the borough ;
 - as respects any urban district, the district council ; and
 - as respects any town having town commissioners and not being an urban district (in this section referred to as a town), the town commissioners :
- (3) The expenses of local authorities under this Act shall be defrayed—
 - in the case of the council of a borough, out of the borough fund or borough rate ;
 - in the case of a district council, as part of the general expenses incurred in the execution of the Public Health (Ireland) Acts, 1878 to 1907 ; and
 - in the case of town commissioners, out of any rate leviable by them as such commissioners throughout the whole of their district :
- (4) References to any provisions of the Factory and Workshop Act, 1901, shall be construed as references to those provisions as applied to Ireland by section one hundred and sixty of that Act :
- (5) The provisions of this Act specified in the first column of the Fourth Schedule to this Act shall, to the extent and subject to the modifications specified in the second column of that schedule, apply to rural districts in Ireland, with this exception, that the provisions specified in Part I. of that schedule shall apply only to towns within rural districts in Ireland ; save as aforesaid, this Act shall not apply to rural districts in Ireland or to towns within such districts :
- (6) In the case of a shop assistant employed in a shop in which the business of the sale by retail of intoxicating liquors is carried on, section one of this Act shall not apply, but, instead thereof, the provisions contained in the Fifth Schedule to this Act shall have effect with respect to shops in which that business is carried on, and, in the case of any contravention of, or failure to comply with, the provisions of that schedule, the

occupier of the shop shall be guilty of an offence against this Act, and shall be liable to a fine not exceeding—

(a) in the case of a first offence, one pound ;

(b) in the case of a second offence, five pounds ;
and

(c) in the case of a third or any subsequent offence, ten pounds :

(7) Any shop in which the trade or business of the sale by retail of intoxicating liquors is carried on in conjunction with any other trade or business shall, as respects all such trades or businesses, be exempt from the obligation to be closed on the weekly half-holiday :

(8) A local authority may, in addition to its other powers under this Act, make an order fixing the hours on the several week-days before which, either throughout the area of the local authority or in any specified part thereof, no shop in which the business of the sale of intoxicating liquors is carried on shall be open for serving customers :

Such order shall be deemed to be a closing order, and all the provisions of this Act, with respect to closing orders, save those relating to the earliest hours to be fixed by a closing order, shall apply accordingly with the necessary modifications :

Provided that an order made under this subsection shall not in any way affect the powers conferred by section eleven of the Licensing (Ireland) Act, 1874, of granting exemption orders in respect of licensed premises, or apply to any licensed premises during any time during which the premises are permitted to be open under any such exemption order : 37 & 38 Vict.
c. 69.

(9) Shops in which there is carried on the business of the sale by retail of intoxicating liquors for consumption on or off the premises, whether such business is carried on alone or in conjunction with any other business or trade, shall, for the purposes of the provisions of this Act with respect to closing orders, be deemed to be shops of a separate class, and a local authority shall not make a closing order applying to shops of that class unless they are satisfied that the occupiers of at least two thirds in number of the shops of that class approve the order :

(10) Shops in which there is carried on the business of the sale by retail of intoxicating liquors for consumption off the premises only, whether such business is carried on alone or in conjunction with any other business

or trade, shall, in like manner and for the purposes aforesaid, be deemed to be shops of a separate class, and the provisions of the last preceding subsection with respect to the making of closing orders shall apply to that class of shops as a separate class accordingly.

Short title,
commence-
ment, and
repeal.

22.—(1) This Act may be cited as the Shops Act, 1912.

(2) This Act shall come into operation on the first day of May nineteen hundred and twelve.

(3) The Shops Regulation Acts, 1892 to 1911, are hereby repealed :

4 Edw. 7, c. 31.

Provided that any closing order made under the Shop Hours Act, 1904, which is in force at the commencement of this Act, shall continue in force until revoked in accordance with the provisions of this Act, except in so far as it fixes a closing hour earlier than seven o'clock for any shop to which the provisions of this Act with respect to the weekly half-holiday apply.

SCHEDULES.

Section 1.

FIRST SCHEDULE.

INTERVALS FOR MEALS.

Intervals for meals shall be arranged so as to secure that no person shall be employed for more than six hours without an interval of at least twenty minutes being allowed during the course thereof.

Without prejudice to the foregoing provision—

- (1) where the hours of employment include the hours from 11.30 a.m. to 2.30 p.m., an interval of not less than three-quarters of an hour shall be allowed between those hours for dinner ; and
- (2) where the hours of employment include the hours from 4 p.m. to 7 p.m., an interval of not less than half-an-hour shall be allowed between those hours for tea ;
- and the interval for dinner shall be increased to one hour in cases where that meal is not taken in the shop, or in a building of which the shop forms part or to which the shop is attached :

Provided that an assistant employed in the sale of refreshments or in the sale by retail of intoxicating liquors need not be allowed the interval for dinner between 11.30 a.m. and 2.30 p.m., if he is allowed the same interval so arranged as either to end not earlier than 11.30 a.m. or to commence not later than 2.30 p.m., and the same exemption shall apply

to assistants employed in any shop on the market day in any town in which a market is held not oftener than once a week, or on a day on which an annual fair is held.

SECOND SCHEDULE.

Section 4.

TRADES AND BUSINESSES EXEMPTED FROM THE PROVISIONS AS TO WEEKLY HALF-HOLIDAY.

The sale by retail of intoxicating liquors.

The sale of refreshments, including the business carried on at a railway refreshment room.

The sale of motor, cycle, and air-craft supplies and accessories to travellers.

The sale of newspapers and periodicals.

The sale of meat, fish, milk, cream, bread, confectionery, fruit, vegetables, flowers, and other articles of a perishable nature.

The sale of tobacco and smokers' requisites.

The business carried on at a railway bookstall on or adjoining a railway platform.

The sale of medicines and medical and surgical appliances.

Retail trade carried on at an exhibition or show, if the local authority certify that such retail trade is subsidiary or ancillary only to the main purpose of the exhibition or show.

THIRD SCHEDULE.

Section 5.

TRADES AND BUSINESSES EXEMPTED FROM PROVISIONS OF CLOSING ORDERS.

The sale by retail of intoxicating liquors.

The sale of refreshments for consumption on the premises.

The business carried on at a railway refreshment room.

The sale of newspapers.

The sale of tobacco and smokers' requisites.

The business carried on at a railway bookstall.

The sale of medicines and medical and surgical appliances

Post Office business.

Section 21.

FOURTH SCHEDULE.

PROVISIONS APPLICABLE TO RURAL DISTRICTS IN IRELAND
AND TOWNS WITHIN SUCH DISTRICTS.

PART I.

TOWNS WITHIN RURAL DISTRICTS.

Section of Act.	Extent of Application and Modifications.
5	The whole section; subject to the modifications that on one specified day in the week the closing hour may be an hour not earlier than one o'clock in the afternoon, and that a closing order may prohibit, either absolutely or subject to such exemptions and conditions as may be contained in the order, the carrying on of any retail trade after the closing hour in any place, not being a shop within the area to which the order applies for the carrying on of which it would be unlawful to keep a shop open after that hour.
6	The whole section.
8	The whole section.
10	Subsection (2).
12	Subsection (1) except paragraphs (a) and (b).
13	Subsection (1), so far as relates to the appointment of inspectors by local authorities and the powers of inspectors so appointed (other than powers to institute and carry on proceedings on behalf of a local authority), subject to the modification that it shall not be obligatory on the local authority to appoint inspectors unless they think fit.
16	The whole section.
17	The whole section.
18	Subsection (1).
Third Schedule	The whole Schedule.

PART II.

RURAL DISTRICTS, INCLUDING TOWNS WITHIN SUCH DISTRICTS.

Section of Act.	Extent of Application and Modifications.
2	The whole section, subject to the modification that it shall not apply to— (a) any shop, wholesale shop or warehouse where the only persons employed are members of the same family dwelling in a building of which such shop or warehouse forms part or to which such shop or warehouse is attached; or (b) members of the occupier's family so dwelling.

Section of Act.	Extent of Application and Modifications.
3	The whole section.
14	The whole section, except the proviso to subsection (1) and subsection (2).
19	The whole section.
21	The whole section, except paragraph (6) and the succeeding paragraphs.
22	The whole section.

FIFTH SCHEDULE.

Section 21.

PROVISIONS WITH RESPECT TO SHOPS IN IRELAND IN WHICH THE BUSINESS OF THE SALE BY RETAIL OF INTOXICATING LIQUORS IS CARRIED ON.

1. A shop assistant shall not, save as otherwise provided by this schedule, be employed for more than seventy-two hours (exclusive of meal hours) in any week about the business of a shop in which the sale by retail of intoxicating liquors is carried on.

2. Intervals for meals shall be allowed to each assistant, amounting to not less than two hours on each week-day.

3. The occupier of the shop shall fix within the limit aforesaid, and shall specify in a notice in the prescribed form affixed in the shop, the times at which the employment or the several spells of employment, as the case may be, of the assistant are to commence and end on the several days of the week, and the assistant shall not be employed about the business of the shop, except within the time so fixed.

4. The assistant may be employed overtime for not more than ninety hours in the calendar year, and such employment shall not be reckoned as employment for the purposes of the foregoing limitation of the hours of employment:

Provided that, during the first two months after the assistant has entered the employment, the amount of overtime worked by him shall not exceed the proportion of two hours for every week he has been in the employment, or is entitled under a contract to continue in the employment.

5. The assistant shall be deemed to be employed overtime if he is employed before the time fixed by the notice for the commencement or after the time so fixed for the ending of his employment or during the interval so fixed between two spells of employment, and overtime shall be reckoned in periods of half an hour, and any period of overtime of less than half an hour shall be reckoned as a complete half hour; and the occupier of the shop when he intends to employ the assistant overtime on any day shall, before the overtime employment commences, record the prescribed particulars with respect to that employment in the prescribed manner.

6. The assistant shall, subject as herein-after mentioned, be allowed on one week-day in each week a holiday of not less than seven hours (in this schedule referred to as a weekly half-holiday).

Unless the employer and the shop assistant otherwise agree, the weekly half-holiday shall commence either at the time at which the shop opens on that day (in this paragraph referred to as "a morning half-holiday"), or at a time not less than seven hours before the time at which the shop closes on that day (in this paragraph referred to as "an afternoon half-holiday"), and the aforesaid half-holidays shall be so arranged that the assistant shall be allowed a morning half-holiday and an afternoon half-holiday alternately.

7. An assistant who has been employed by the same employer for a period of not less than twenty-six consecutive weeks about the business of one or more shops of the employer shall, so long as he continues in the employment of that employer, be allowed an annual holiday of at least seven consecutive days, or, if he has been employed as aforesaid for a period of not less than fifty-two consecutive weeks, an annual holiday of at least fourteen consecutive days.

8. In any week in which an assistant is absent from his employment in or about the business of the shop, either on his annual holiday or on account of ill-health or otherwise, the weekly half-holiday may be disallowed in the case of every other assistant employed in or about the business of the shop and the number of hours of weekly employment of every such other assistant may be increased by seven hours accordingly: Provided that, where the assistant is absent for more than four consecutive weeks on account of ill-health, the weekly half-holiday of the other assistants shall not be disallowed and their hours of employment shall not be increased by reason of such absence except in the first four weeks in which he is absent.

9. No deduction from wages or salary payable to the assistant shall be made on account of any such holidays or half-holidays as aforesaid.

CHAPTER 4.

An Act to amend section twenty-three of the Metropolitan Police Act, 1829, with respect to the Limit imposed by that section as amended by subsequent enactments on the Amount to be provided annually for the purposes of the Metropolitan Police. [29th March 1912.]

BE.it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Alteration of limit on sum to be raised for police expenses.

10 Geo. 4, c. 44.
31 & 32 Vict.
c. 67.

1. The maximum rate in the pound for the purposes of the proviso to section twenty-three of the Metropolitan Police Act, 1829, as amended by section two of the Police Rate Act, 1868, (by which enactments a limit is imposed on the annual sum to be provided for the purposes of the metropolitan police), shall be elevenpence instead of ninepence; and those sections shall,